OFFICE OF THE FIRST APPELLATE AUTHORITY, RTI (GENERAL),
COMMISSIONERATE OF CUSTOMS-V, AIR CARGO COMPLEX,
SAHAR, ANDHERI (EAST), MUMBAI – 400 099.
e-mail-rti.gen.acc@gmail.com **Ph. No. 26816645**

F. NO. F/A-10/20-21/RTI (G)/ACC **DATE OF ORDER :-** 07.04.2021

DIN NO. 20210479OD000000D441 **DATE OF ISSUE :-** 07.04.2021

ORDER IN APPEAL NO. 10/2020-21

Passed By:- **Shri Amit Kumar Sharma.**

First Appellate Authority, (Joint Commissioner of Customs).

ORDER-IN-APPEAL

This order–in-Appeal is issued under Sub-Section (6) of section 19 of the right to Information Act, 2005.

i. An Appeal against this order can be preferred to the Central Information commission, Old JNU Campus, Block 4, 5th floor, New Delhi-110067 under Sub-section(3) of section 19 of the Right to Information Act,2005, if the appellant so desires within 90 days from the date of receipt of this order.

ii. Appeal from:-Shri Mahendra Kumar,MO-Walipur,Ward No-22,Post-Barh,Pin-803213.

Subject:-First Appeal against the Disposal Order No. S/RTI/Gen-53/20-21 ACC dated 15.02.2021 of the CPIO on RTI application No.CCUM3/R/E/21/00013 dated 03.02.2021-reg.

1. The appellant Shri Mahendra Kumar residing at MO-Walipur,Ward No-22,Post-Barh, Pin-803213 filed an online appeal vide Reg. No. CCUM3/A/E/ 21/00005 dt.07.03.2021 under section 19 (1) of the Right to information Act, 2005 received on 10.03.2021. The appeal was preferred against the order no. S/RTI/Gen-53/20-21 ACC dated 15.02.2021 of the CPIO on RTI application No.CCUM3/R/E/21/00013 dt.03.02.2021.

FACTS OF THE CASE

2. The appellant had made an online RTI application dated 03.02.2021 u/s 6(1) of the RTI Act, 2005. The same was forwarded to CPIO (General), Air Cargo Complex, Mumbai on 05.02.2021 from the O/o Chief Commissioner of Customs, Mumbai, Zone III vide registration no.CCUM3/R/E/21/00013 by e-mail. The applicant requested FOR "copy of note sheet alongwith correspondence side in attested for special cash package in lieu of LTC and alongwith 10 days leave encashment".

2.1 The CPIO (General), ACC, Mumbai vide his order no. S/RTI/Gen-53/2020-21/ACC dated 15.02.2021 provided following point wise reply:

1. The required documents will be provided only after payment of Rs. 2/- vide Challan as per provisions of Right to Information (Regulation of Fees and Court) Rules, 2005.

2. The claim of the applicant is sanctioned by JC/APB and the bill will be sent to PAO/JNCH before 15.02.2021.

3. The processing of the claim was delayed firstly, as this being a new scheme, for which there were certain clarifications required from various sections in order to process and secondly due to shortage of staff in Accounts Pay Bill.

4. The section has received total 64 applications for the special cash package. Further as per rule 8(1) (j) of Right to Information Act, 2005 third party information cannot be provided.

2.2 Aggrieved by this, the appellant preferred an appeal before undersigned on the ground that "Provided incomplete, misleading or false information".

2.3 The appellant in his appeal has quoted "Provided Incomplete, Misleading or False Information" as his Grounds of Appeal. He has mentioned following grounds in the text of RTI First Appeal:

"Please provide the information under relevant section of the RTI Act.

i. *Please provide the copy of note sheet along with correspondence side in attested form by which my application for special cash package in lieu of LTC along with 10 days leave encashment ass mentioned in DOE OM dated 12.10.2020 issued vide File No. 12(2)/2020 EII (A) dated 24.11.2020 and reminder dated 04.01.2020 has been processed.*

CPIO reply this required documents will be provided after payment of Rs.2/- vide Challan as per provisions of Right to Information rules 2005.

ii. *Please provide the current status of my application for special cash package in lieu of LTC along with 10 days leave encashment dated 24.11.2020. Please provide the related documents in attested form.*

CPIO reply – The claim of the applicant is sanctioned by JC/APB and will be sent to PAO, NCH before 15.02.2021. Here, CPIO has not provided any documents and their reply appears to be false, because no advance has been disburse to me till date.

iii. *There is no advance has been paid to me till date in respect of my application for special cash package in lieu of LTC along with 10 days leave encashment dated 24.11.2020. If there is a suitable ground for not disbursing the advance to me as mentioned in DOE OM dated 12.10.2020 issued vide file no. 12(2)/2020EII (A) Kindly provide the related documents in attested form.*

CPIO reply- The processing of claim was delay firstly, as this being a new scheme for which there were certain clarification are requires from various sections and order to process and secondly due to shortage of staff in accounts pay bill. Here, CPIO has provided false information. No factual data has been provided.CPIO reply is misleading. Since there is no documentary evidence has been provide regarding this so, the CPIO reply appears as false.

iv. *No. of applications submitted to your office for availing the special cash package in lieu of LTC till and their current status. Please provide the related documents in attested form. CPIO Reply – This section has received total 64 applications for special cash package. Further as per rule 8(1)(j) of Right to Information Act, 2005 third party information cannot be provided. Since, This is a special package provide the Government to boost the economy so it has a larger public interest. It cannot be denied by using section 8(1)(j) because the scheme has a larger public interest. This package is economic booster scheme.*

2.4 The concerned section i.e. Accounts pay bill section of Air Cargo Complex was instructed vide letter no. F/A-10/20-21/RTI (G)/ACC dated 10.03.2021 to provide their comments on the grounds of appeal. In response vide letter dated 19-03-2021 they have submitted as below:

1. The required documents will be provided only after payment of Rs.2/- vide Challan as per Provisions of Right Information (Regulation of Fees and Court) Rules, 2005.

2. The claim of the applicant was sanctioned by JC/APB and the bill was sent to PAO, NCH on 12.02.2021 but bill was returned due to No Budget, further the bill was recreated in PFMS and resent to PAO / NCH on 18.03.2021. The processing of the claim was delayed firstly, the Special Cash Package being a new Scheme, certain clarification were required from various Sections in order to process and secondly due to shortage of staff in Accounts Pay Bill.

3. This Section has received total 122 applications for the special cash package, out of which 90 are sanctioned and sent PAO for disbursal of the same. Further regarding third party information refer to the Hon'ble Supreme Court of India in Para No.59 of the judgement in Civil Appeal No.10044 of 2010 titled as Central Public Information officer vs Subhash Chandra Agarwal has defined "Personal information". The relevant part of the Judgement is reproduced below:

"Reading of the aforesaid judicial precedents, in our opinion, would indicate that personal records, including name, address, physical, mental and psychological status, marks obtained, grades and answer sheets, are all treated as personal information. Similarly, professional records, including qualification, performance, evaluation reports, ACRs, disciplinary proceedings, etc. are all personal information. Medical records, treatment, choice of medicine, list of hospitals and doctor visited, findings recorded, ***including that of the family members, information relating to assets, liabilities, income tax returns, details of investments, leading and borrowing, etc. are personal information.*** *Such personal information is entitled to protection from unwarranted invasion of privacy and conditional access is available when stipulation of larger public interest is satisfied. This list is indicative and not exhaustive.*

2.5 Personal Hearing:

On receipt of the appeal, an opportunity of being heard was given to the appellant on 25.03.2021 at 11.30AM. However the appellant did not appear in the Personal Hearing on the scheduled date.

DISCUSSION AND FINDINGS

3. I have gone through the original RTI Application dated 03.02.2021, reply of the CPIO vide order dated 15.02.2021, First Appeal dated 07.03.2021 filed by the applicant and comments from the concerned section. The appellant was provided opportunity of personal hearing, which he didn't availed neither he submitted any submission. I, therefore, proceed to decide the appeale on the basis of facts on record.

3.1 I find that the CPIO has provided suitable reply/information with respect to point no.-1 of the RTI application. Also, the appellant has not stated anything against the information provided for this point.

3.2 With respect to Point No-2 of the RTI application, I find that the CPIO has provided the status of application as sought by applicant. Also, the document sought is already covered in the reply to the point no-1. Since the information sought has already been provided, the appeal with respect to this point is not maintainable.

3.3 In point no-3 to the RTI application the applicant had asked for the grounds for not disbursal of advance to the applicant along with the related documents in attested form. On perusal of the comments from the concerned section as in para 2.4(2) above it is seen that there was no any grounds for disbursal of the amount. However, reply from the CPIO do not cover the information sought from the applicant specifically in the Para 4 to the disposal order dated 15-02-2021, though covered in information provided with regard to point 1and 2 of the RTI application.

3.4 With respect to point-4 (mentioned as point 2 in the original RTI application) it is seen that the CPIO has provided the number of applicationsbut the current status thereof has not been provided. I find that if total number of application can be provided, and the applicant has not sought information of any personal details contained in the files, there is no reason to say that status of these claims is exempted against disclosure under section 8(1)(j) of the RTI Act, 2005.

3.4 Considering the submission and the detailed facts of the case, it is my views that, the appeal of the appellant vide Registration No. CCUM3/A/E/21/00005 dated 07.03.2021 is partially allowed and accordingly the information sought by the appellant is to be provided under the provision of RTI Act,2005.

ORDER

4. On the basis of above discussion and findings, I passed the following order;

(a) The appeal of the appellant is partially allowed under the provisions of RTI Act, 2005.

(b) The CPIO is directed to provide the information with respect to point 3 and 4 (written as point no- 2 after the point no- 3 in the original RTI application) within 3 weeksby getting the requisite information as discussed in Para 3.3 and 3.4 of this Order.

(c) By furnishing the requested information to the appellant, present appeal is disposed off.

07/04/21

(AMIT KUMAR SHARMA)
First Appellate Authority,
Joint Commissioner of Customs (G),
ACC, Mumbai Zone-III

F. NO. F/A-10/20-21/RTI (G)
S/RTI/Gen-53/2020-21/ACC(Gen.)

Copy to:

1. Shri Mahendra Kumar,MO-Walipur,Ward No-22,Post-Barh,Pin-803213
2. DC/CC0-Zone-III (wrt -CCUM3/A/E/20/00117 dated 01.12.2020)
3. CPIO/RTI GEN, ACC.
4. DC/EDI (ACC) for uploading on the Website.